

Tentative Rulings for September 22, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2401017	FOX vs BOWEN	MOTION FOR EARNINGS WITHHOLDING ORDER AGAINST JUDGMENT DEBTOR'S SPOUSE

Tentative Ruling:

An earnings withholding order may issue against the earnings of a judgment debtor's spouse only by court order on noticed motion. (CCP § 706.109.) Subject to statutory exceptions, all property acquired by a married person during the marriage while domiciled in this state is community property. (Fam. Code, § 760.) "Community property is subject to enforcement of a money judgment as provided in the Family Code." (CCP § 695.020(a).)

Family Code §910(a) provides that "the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." (Family Code § 910(a); see also, *Lezine v. Security Pacific Financial* (1996) 14 Cal.4th 56, 64.) "During marriage ... does not include the period after the date of separation" and "before a judgment of dissolution of marriage or legal separation." (*Id.*, § 910(b).)

Here, the evidence shows that the court entered judgment on 9/26/24 against Chris Bowen and two entity defendants for \$502,711.81. (Fox Decl., p. 1.) Plaintiff declares that the judgment has not been stayed by stipulation or any order of any court and is in full force. (*Id.*) He further declares that the judgment, with accrued interest and costs, remains unsatisfied in the total sum of \$576,804.19. (*Id.*) This is an enforceable judgment. Plaintiff also filed proof that he timely served the motion.

The complaint alleges various loans between 9/1/20 and 3/2/21. (Compl., ¶ 8.) Plaintiff's declaration states that Chris and April Bowen were married during that time and continue to be married. (Fox Decl., p. 2.) On this *unopposed* record, the debt was incurred during the marriage. The community estate would therefore be liable under Fam. Code § 910(a). **Accordingly, the court grants the motion and authorize withholding only against earnings that are community property.** If April Bowen contends that some or all earnings are separate property, she retains any exemption, claim, or other procedure available. (See Fam. Code, §§ 910(b), 771(a).)

As to evidence concerning April's proposed wage source as a Baptist University employee, that is not dispositive to the determination under CCP § 706.109.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 22, 2026, by 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502130	OJUKWU vs CUNNINGHAM	MOTION (RELIEF FROM WAIVER OF JURY TRIAL AND/OR FOR LEAVE TO PROCEED BY JURY TRIAL)

Tentative Ruling:

The motion is granted. The trial set on January 15, 2027, at 10:00 a.m., is reset to a jury trial, not court trial. Plaintiff shall post jury fees by no later than September 25, 2026.

The court sets an Order to Show Re: Sanctions Not to Exceed \$1,500 or Revert to Court Trial for Failure to Timely Post Jury Fees against Plaintiff and Plaintiff's Counsel on October 14, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The unopposed motion to for leave to file a Second Amended Complaint is granted. *However*, it does not deem Exhibit C to be filed. Plaintiff is ordered to file and serve the SAC within ten (10) days. ***The proposed SAC is NOT deemed to be filed and served as of the date the motion is granted; it must be filed separately.*** Thereafter, Defendants are ordered to file and service their answer or other responsive pleading within ten (10) days.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 22, 2026, by 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600083	DOE vs DOES 1-50	MOTION TO PLACE DOCUMENTS UNDER SEAL

Tentative Ruling:

The court grants the motion to place documents under seal to the extent that it is intended to place under seal the unredacted versions of the following:

1. 01/23/2026 Complaint for Civil Stalking and Harassment
2. 01/26/2026 Notice of Motion and Motion for Order Sealing Records
3. 01/26/2026 Notice of Motion and Motion for Leave to Conduct Limited Early Discovery
4. 03/03/2026 Supplemental Declaration of John Doe in Support of Renewed Motion
5. 03/03/2026 Ex Parte Application and Renewed Motion for Leave
6. 03/05/2026 Notice of Hearing on Complaint for Other Complaint
7. 03/05/2026 Noticed of Renewed Motion and Renewed Motion for Leave
8. 04/30/2026 Motion for Leave to Conduct Limited Early Discovery
9. 05/04/2026 Notice of Hearing on Complaint for Other Complaint

However, as to the aforementioned documents themselves, there is no confidential information in them. For instance, the Complaint filed January 23, 2026 is a redacted version. Thus, as to these specifically filed documents that do not contain confidential information, the motion is denied, and the documents are not placed under seal.